

August 31, 2026
Dept. 9
Probate Tentative Rulings

12.	25PR0332	MATTER OF WINTERS FAMILY TRUST DATED 12-15-1996
PETITION HEARING		

On May 5, 2026, Petitioner, Jeffrey Murray, Sr. ("Petitioner" or "Trustee"), filed a Petition for Settlement of First and Final Account and Report of Trustee. On June 16, 2026, Objector, Robin Kappeler Mullin ("Objector"), filed an Objection.

Petitioner requests the following:

1. The Court determine that notice of hearing has been given as required by law;
2. The Court determine that this First and Final Account and Report of Trustee is settled, allowed, and approved, and all acts and transactions of Trustee set forth in it or relating to the matters set forth in it, are ratified, confirmed and approved; and
3. The Court make such other relief as it considers proper.

On March 5, 2026, the Court ordered Trustee to, in part, provide tax returns, filed for the Winters Trust dated May 5, 1989 (Family Trust) and Winters Farm, Inc., from the date of Carolyn Winters' death to present on or before April 30, 2026. Objector contends that to date, the tax returns have not been received, and therefore, she cannot assess the Trustee's accounting.

Objector requests the following:

1. That the Court deny the Petition for Settlement of First and Final Account and Report of Trustee in its entirety;
2. That the Court compel the de facto successor Trustee, Jeffrey Murray, Sr., to provide tax returns for the Winters Family Trust and Winter Farms, from September 29, 2019, to date; and
3. For such further relief as the Court deems appropriate and proper.

At the hearing on June 22, 2026, the Court continued the matter to August 31, 2026. Nothing further has been filed since this time.

TENTATIVE RULING #12:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, AUGUST 31, 2026, IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.